

If you are dissatisfied with a decision the Australian Fisheries Management Authority or a Joint Authority has made concerning the provisional allocation of statutory fishing rights, you may be able to appeal to the SFRARP.

You do not have a right of appeal if the allocation was made as a result of an auction or tender process.

You must lodge the application to appeal within 14 days of being notified of the decision.

For more information on the review process see [Reviews of Decisions](#)

Application Form

- [Application for Review of Decision to Grant a Fishing Right PDF](#)  [28 KB, 2 pages]
[Application for Review of Decision to Grant a Fishing Right DOC](#)  [40 KB, 2 pages]
- Information for Applicants - are sent out in a package with the Australian Fisheries Management Authority's provisional allocations. If you require a further copy, please contact the [SFRAP Registry](#).

If you have difficulty downloading the forms, you can email the [SFRARP Deputy Registrar](#) to make alternative arrangements for obtaining a copy or call 02 6272 3036.

Please note that all applications will be made public. All persons registered in relation to the grant of the provisional statutory fishing rights in the relevant fishery are entitled to be notified of the application for review and, if they wish, can participate in the hearing of the application.

For more information on what happens to your application once it has been lodged see the [SFRARP frequently asked questions](#).

SFRARP Directions Procedures

The directions for procedures to be adopted for all applications lodged with SFRARP are outlined in the [SFRARP Directions Procedures DOC](#)  [69 KB, 2 pages]

Obligations on Applicants

Representation before the SFRARP

You may appear in person or be represented by someone else at a SFRARP hearing and will be required to give evidence under oath or affirmation. You are also required to answer the SFRARP's questions.

Appeals before a Federal Court

You can appeal to the Federal Court on points of law relating to a SFRARP decision if you have been party to the proceeding.

You must institute your appeal within 28 days of being notified of SFRARP's decision.

The Federal Court

The Federal Court will hear and determine the appeal and may make orders as appropriate. The orders made may include:

- an order affirming or setting aside the SFRARP's decision or
- an order remitting the matter to be reviewed and decided again, either with or without the taking of further evidence by SFRARP in accordance with the directions of the Court.

Source: <https://www.agriculture.gov.au/agriculture-land/fisheries/sfrarp/appeal>